

Line 9

Case Name: *Anthony Tomol v. Ford Motor Company, et al.*

Case No.: 25CV478692

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Hemborg Ford (“the Dealership”) moves under the Federal Arbitration Act (9 U.S.C. § 1 *et seq.*) and Code of Civil Procedure Section 1281.4 to compel arbitration and stay this civil action pending the completion of that arbitration. Notice of Motion (the “Motion”) at 1:4-20 (filed: Dec. 8, 2025).

The Motion came on for hearing on July 15, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

According to the Complaint, Plaintiff Anthony D. Tomol (Plaintiff) purchased a 2021 Ford Mustang Mach-E (Subject Vehicle) in November 2021 from the Dealership. (Complaint at ¶ 7.) Plaintiff delivered the Subject Vehicle to the Dealership for substantial repair on at least one occasion. (*Id.* at ¶ 47.) Plaintiff alleges that the Dealership “breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (*Id.* at ¶ 49.) Plaintiff sued the Dealership and Ford Motor Company in October 2025. The sole cause of action alleged against the Dealership is for negligent repair.

At issue is the Dealership’s Motion to compel arbitration, based on the Retail Installment Sales Contract (RISC) signed by Plaintiff and the Dealership when Plaintiff purchased the Subject Vehicle. Having reviewed the language of the RISC’s arbitration provision and the circumstances of its execution, the Court **GRANTS** the Motion and **STAYS** this civil action in its entirety until that arbitration is complete.

Legal Standard on Motion to Compel Arbitration

The Dealership asserts that the Federal Arbitration Act (FAA) governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at pp. 6:25-7:1.) The Court agrees. The RISC’s arbitration provision states “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 *et seq.*) and not by any state law concerning arbitration.” (Declaration of Trina Clayton [“Clayton Decl.”], Ex. A.)

Under the FAA, the Court’s role in deciding this Motion is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th

Cir. 2000) 207 F.3d 1126, 1130.)

To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Moreover, Code of Civil Procedure Section 1281.2 provides in mandatory terms: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court *shall* order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for rescission of the agreement.” C.C.P. § 1281.2(a) & (b) (emphasis added).

In determining the threshold question of whether an arbitration agreement exists between these parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement’s existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755.

Analysis of the Motion

I. There is a Valid Agreement to Arbitrate here.

The arbitration provision in the RISC provides, in relevant part:

Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action.

(Clayton Decl., Ex. A).

Here, Plaintiff does not dispute that he signed the RISC when he purchased the Subject Vehicle. Plaintiff signed and acknowledged the following notice of the arbitration

provision:

“Agreement to Arbitrate. By signing below, you agree that pursuant to the Arbitration Provision on the reverse side of this contract, you or we may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision for additional information concerning the agreement to arbitrate.”

(*Id.*)

The RISC further drew the arbitration provision to Plaintiffs’ attention through the following disclaimer:

“ . . . YOU ACKNOWLEDGE THAT YOU HAVE READ BOTH SIDES OF THIS CONTRACT, INCLUDING THE ARBITRATION PROVISION ON THE REVERSE SIDE, BEFORE SIGNING BELOW.”

(*Id.*)

Plaintiff’s signature on those sections of the RISC shows Plaintiff’s express assent to this arbitration provision. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777 [“A party’s acceptance of an agreement to arbitrate may be express, as where a party signs the agreement.”].)

While Plaintiff argues the Dealership failed to properly authenticate the RISC and thus failed to meet its burden of proving the existence of a valid agreement to arbitrate, that argument is unavailing because “moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.’” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted.) Here, the Dealership attached a copy of the RISC signed by Plaintiff as Exhibit A to the Declaration of Trina Clayton. And the Dealership has also set forth the terms of the arbitration provision in the motion itself. (Mtn. to Compel Arbitration at pp. 3:18-4:11.) In any event, “[f]or purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of authentication.” (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166.)

Accordingly, the Court finds and rules that the Dealership has shown a valid agreement to arbitrate with Plaintiff here.

II. The Scope of the Arbitration Agreement Covers Plaintiff’s Claims

Here, the arbitration provision broadly applies to “[a]ny claim or dispute, whether in contract, tort, statute or otherwise..., between you and us..., which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship.” (Clayton Decl., Ex. A.) Plaintiff’s sole cause of

action against the Dealership is a tort action for negligent repair. Plaintiff and the Dealership are the parties to the transaction. Plaintiff's action relates to the condition of the vehicle, namely the condition of the vehicle following repair by the Dealership. That the allegedly negligent repair occurred after the parties signed the RISC is ultimately irrelevant because the arbitration provision states it applies to both "this contract" and "any resulting transaction or relationship" between the parties. Plaintiff's claim against the Dealership is covered by the arbitration provision.

Plaintiff relies on *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 to argue "warranty performance is not arbitrable through the form Sales Contract proffered by [the Dealership]." (Opposition at p. 2:8-10.) That opinion is distinguishable. *Ford Motor Warranty Cases* involved an attempt by an automobile manufacturer to compel arbitration based on a sales contract between a buyer and a dealership to which the manufacturer was not a party. The Supreme Court rejected the manufacturer's attempt to compel arbitration on a third-party equitable estoppel theory. (*Id.* at p. 1126.) In sharp contrast, here the entity petitioning to compel arbitration is a party to the contract containing the arbitration provision. The RISC is an agreement Plaintiff entered into with the Dealership—which may compel arbitration of Plaintiff's claims here.

In sum, the Court finds and rules that the broad scope of the arbitration agreement between Plaintiff and the Dealership covers Plaintiff's claims here. Accordingly the Dealership's Motion to compel arbitration is **GRANTED**.

This Action is Stayed in its Entirety

The Dealership requests a stay of the entire action. As the Dealership notes, Plaintiff has sued two entities, Ford Motor Company and the Dealership, for different causes of action. The Dealership argues that "[p]roceeding against both defendants in separate forums carries an extremely high risk of rendering inconsistent rulings and rendering arbitration as to [the Dealership] ineffective." (Reply at p. 8:24-25). The Court agrees.

Moreover, Plaintiff has not offered any arguments opposing a stay to the entire action.

After carefully weighing the positions and arguments of all parties, the Court in the broad exercise of its discretion **STAYS** of this civil action in its entirety under Code of Civil Procedure § 1281.4 and 9 U.S.C. § 3.

Conclusion & Order

Accordingly, the Motion to Compel Arbitration is **GRANTED** and this action is **STAYED** in its entirety pending completion that arbitration.

SO ORDERED.

Date: July 15, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 10

Line 11

Line 12

Line 13

Line 14

Line 15